

The Citizenship Act, 1955

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Union of India - Act

The Citizenship Act, 1955

UNION OF INDIA

India

The Citizenship Act, 1955

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The Citizenship Act, 1955

(57 of 1955)

Last Updated 13th December, 2019

Statement of Objects and Reasons. - Articles 5 to 9 of the Constitution determine who are Indian citizens at the commencement of the Constitution and article 10 provides for their continuance as such citizens subject to the provisions of any law that may be made by Parliament. The Constitution does not, however, make any provision with respect to the acquisition of citizenship after its commencement or the termination of citizenship or other matters relating to citizenship. Under article 11, the Constitution expressly saves the power of Parliament to make a law to provide for such matters. It is obviously necessary to make such a law to supplement the provisions of the Constitution and this Bill seeks to achieve this object.

This Bill provides for the acquisition of citizenship, after the commencement of the Constitution, by birth, descent, registration, naturalisation and incorporation of territory. It also makes necessary provisions for the termination and deprivation of citizenship under certain circumstances. The Bill also seeks to formally recognize Commonwealth citizenship and permit the Central Government to extend on a reciprocal basis such rights of an Indian citizen as may be agreed upon to the citizens of other Commonwealth countries and the Republic of Ireland.

Amendment Act 65 of 1985-Statement of Objects and Reasons. - The core of the Memorandum of Settlement (Assam Accord) relates to the foreigners' issue, since the agitation launched by the A.A.S.U. arose out of their apprehensions regarding the continuing influx of foreign nationals into Assam and the fear about adverse effects upon the political, social cultural and economic life of the State.

(2) Assam Accord being a political settlement, legislation is required to give effect to the relevant clauses of the Assam Accord relating to the foreigners' issue.

(3) It is intended that all persons of Indian origin who came to Assam before the 1st January, 1966 (including such of those whose names were included in the electoral rolls used for the purpose of General Election to the House of the People held in 1967) and who have been ordinarily resident in Assam ever since shall be deemed to be citizens of India as from the 1st day of January, 1966. Further, every person of Indian origin who came on or after the 1st January, 1966 but before the 25th March, 1971 from territories presently included in Bangladesh and who has been ordinarily resident in Assam ever since and who has been detected in accordance with the provisions of the Foreigners Act, 1946 and the Foreigners (Tribunals) Order, 1964, shall, upon registration, be deemed to be a citizen for all purposes as from the date of expiry of a period of ten years from the date of detection as a foreigner. It is also intended that in the intervening period of 10 years, these persons should not suffer from any other disability vis-a-vis citizens, excepting the right to vote and that proper record shall be maintained of such persons. To inspire confidence, judicial element should be associated to determine eligibility in each and every case under this category.

Amendment Act 6 of 2004-Statement of Objects and Reasons. - The Citizenship Act, 1955 which provides for the acquisition of citizenship, after the commencement of the Constitution by birth, descent, registration, naturalisation and incorporation of territory under certain circumstances, and also provides for the termination and deprivation of citizenship, was among those 109 Central Acts identified for a review by the Commission on Review of Administrative Laws constituted by the Central Government under the Chairmanship of Shri P.C. Jain in 1998. Subsequently, the High Level Committee on Indian Diaspora constituted by the Central Government, inter alia, recommended the amendment of this Act to provide for the grant of dual citizenship to persons of Indian origin belonging to certain specified countries.

The Central Government has accordingly decided to make provisions for the grant of dual citizenship and has taken the opportunity of introducing a scheme for the compulsory registration of every citizen of India, and for this purpose to issue national identity cards.

2. The above objects are proposed to be achieved, inter alia, by amending provisions of the Citizenship Act so as to-

- (i) make acquisition of Indian citizenship by registration and naturalisation more stringent;
- (ii) prevent illegal migrants from becoming eligible for Indian citizenship;
- (iii) simplify the procedure to facilitate the re-acquisition of Indian citizenship by persons of full age who are children of Indian citizens, and former citizens of independent India;
- (iv) provide for the grant of overseas citizenship of India to persons of Indian origin belonging to specified countries, and Indian citizens who choose to acquire the citizenship of any of these countries at a later date;
- (v) provide for the compulsory registration and issue of a national identity card to all citizens of India;
- (vi) enhance the penalty for violation of its provisions, as well as the rules framed under it; and
- (vii) to omit all provisions recognizing, or relating to the Commonwealth citizenship from the Act.

Amendment Act 32 of 2005-Statement of Objects and Reasons. - The Citizenship Act, 1955 provides for the acquisition of citizenship, at the commencement of the Constitution by birth, descent, registration, naturalization and incorporation of territory under certain circumstances, and also provides for the termination and deprivation of citizenship: High Powered Committee on Indian Diaspora, constituted by the Central Government, inter alia, recommended the amendment of the said Act to provide for grant of dual citizenship to persons of Indian origin belonging to certain specified countries. The Central Government has, accordingly, notified the Citizenship (Amendment) Act, 2003 (6 of 2004) making provision for acquisition of Overseas Citizenship of India (OCI) by the Persons of Indian Origin (PIOs) of 16 specified countries other than Pakistan and Bangladesh. The Prime Minister in the Pravasi Bhartiya Divas, 2005 made a statement on OCI scheme that the Government has decided to grant OCI to all overseas Indians who migrated from India after 26th January, 1950 as long as their home countries allow dual citizenship under their local laws. In order to implement the Government's decision, an Ordinance called the Citizenship (Amendment) Ordinance, 2005 was promulgated on 28th June, 2005 to extend the scope of OCI or PIOs of all countries except Pakistan and Bangladesh as long as their countries allow dual citizenship. The said Ordinance is proposed to be replaced by a Bill by amending the provisions of the Citizenship Act, 1955 so as to-

- (i) expand the scope of grant of Overseas Citizenship of India to Persons of Indian Origin of all countries except Pakistan and Bangladesh; and
- (ii) reduce the period of residence in India from two years to one year for the persons registered as Overseas Citizens of India to acquire Indian citizenship.

2. The Bill seeks to replace the aforesaid Ordinance.

Amendment Act 65 of 1957-Statement of Objects and Reasons. Section 2 (1)(c) of the citizenship Act, 1955, empowers the Central Government to declare, by notification in the Official Gazettee, the citizenship or nationality law in relation to any country specified in the First Schedule at the request of the Government of that country. Where such a declaration is made, persons of full age and capacity who are the citizens of that particular country may, subject to such conditions and restrictions as may be prescribed in this behalf, be registered as citizens as may be prescribed in this behalf, be registered as citizens of India under the provisions of section 5(1)(e) of the Citizenship Act. Since the enactment of the Citizenship Act in 1955, Ghana, the Federation of Malaya and Singapore have become Commonwealth countries. In order to enable the Government of India to notify, on a reciprocal basis, the citizenship or nationality law of these countries as and when it become necessary, it is proposed to amend the Act to include these countries also in the First Schedule.

Amendment Act 51 of 1986-Statement of Objects and Reasons. A large number of persons of Indian origin have entered the territory of India from Bangladesh, Sri Lanka and some Africa countries and they are residing in India. Government has taken a serious view of the entry of persons clandestinely into India and with a view to making the provisions of the Citizenship Act relating to the grant of Indian citizenship more stringent it is proposed inter alia to make the following changes in the Citizenship Act, 1955, namely:-

- (i) under the existing provisions every person born in India on or after the 26th day of January, 1950. shall be a citizen of India by birth. With a view to preventing automatic acquisition of citizenship of India by birth, it is proposed to amend the Act to provide that every person born in India after the commencement of the antendine Act will become a citizen of India by birth only if at the time of his birth either of his parents is a citizen of India;

(ii) under the Act, certain categories of persons may apply for citizenship by registration. One such category is of those persons of Indian origin who are ordinarily residents in India and have been so residents for six months immediately before making an application for registration. Another category is of women who are, or have been, married to citizens of India. These provisions are proposed to be made more stringent by providing that a person would be eligible for citizenship by registration only if he is ordinarily resident in India and have been so resident for five years immediately before making an application for registration. It is also proposed to change the word "women" by "person" in the latter category so that the eligibility of citizenship through marriage to citizens of India now admissible to women only is extended to men also.

(iii) under the Act, a person who is not a citizen of a Commonwealth country referred to in the First Schedule to the Act may apply for the grant of a certificate of naturalization if he has resided in India for the period of at least five years. It is proposed to increase this period to ten years.

2. The Bill seeks to achieve the aforesaid objects. Gazette of Ind., 4-11-1986, Pt. II, Section 2. Ext., P. 3 (No. 43).

Amendment Act 39 of 1992-Statement of Objects and Reasons. India is a signatory to the Convention on Elimination of all Forms of Discrimination against Women adopted by the General Assembly of the United Nations on 18th December, 1979. Article 9(2) of the Convention requires that the "States Parties shall grant women equal rights with men with respect to the nationality of their children". Sub-section (1) of section 4 of the Citizenship Act, 1955 provides that a person born outside India on or after 26th January, 1950 shall be a citizen of India by descent only if his father is an Indian citizen at the time of his birth. With a view to eliminate discrimination against women in respect of nationality of their children and in order to bring the provisions of the Citizenship Act, 1955 in conformity with article 9(2) of the aforesaid Convention, it is proposed to amend the said Act so as to provide that every person born outside India on or after the coming into force of the provisions of the Bill shall become a citizen of India by descent if either of his parents is a citizen of India.

2. The Bill seeks to achieve the aforesaid object. - Gazette of India, 31-5-1990, Pt. II. Section 2, Ext., p. 3 (No. 30).

[30th December, 1955]

An Act to provide for the acquisition and determination of Indian citizenship.

Be it enacted by Parliament in the Sixth Year of the Republic of India as follows:

1.

Short title.

- This Act may be called The Citizenship Act, 1955.

2.

Interpretation.

(1)

In this Act, unless the context otherwise requires,

(a)

a Government in India means the Central Government or a State Government;

(b)

illegal migrant means a foreigner who has entered into India

(i)

without a valid passport or other travel documents and such other document or authority as may be prescribed by or under any law in that behalf; or

(ii)

with a valid passport or other travel documents and such other document or authority as may be prescribed by or under any law in that behalf but remains therein beyond the permitted period of time;

[Provided that any person belonging to Hindu, Sikh, Buddhist, Jain, Parsi or Christian community from Afghanistan, Bangladesh or Pakistan, who entered into India on or before the 31st day of December, 2014 and who has been exempted by the Central Government by or under clause (c) of sub-section (2) of section 3 of the Passport (Entry into India) Act, 1920 or from the application of the provisions of the Foreigners Act, 1946 or any rule or order made thereunder, shall not be treated as illegal migrant for the purposes of this Act;]

[Inserted by Act

No. 47 of 2019

, dated 12.12.2019.]

(d)

Indian consulate means the office of any consular officer of the Government of India where a register of births is kept, or where there is no such office, such office as may be prescribed;

(e)

minor means a person who has not attained the age of eighteen years;

(ee)

["overseas citizen of India Cardholder" means a person registered as an Overseas Citizen of India Cardholder by the Central Government under section 7A]

[Substituted by Act No. 1 of 2015.]

;

(f)

person does not include any company or association or body of individuals, whether incorporated or not;

(g)

prescribed means prescribed by rules made under this Act;

[* * *]

(h)

undivided India means India as defined in the Government of India Act, 1935, as originally enacted.

(2)

For the purposes of this Act, a person born aboard a registered ship or aircraft, or aboard an unregistered ship or aircraft of the Government of any country, shall be deemed to have been born in the place in which the ship or aircraft was registered or, as the case may be, in that country.

(3)

Any reference in this Act to the status or description of the father of a person at the time of that persons birth shall, in relation to a person born after the death of his father, be construed as a reference to the status or description of the father at the time of the fathers death; and where that death occurred before, and the birth occurs after, the commencement of this Act, the status or description which would have been applicable to the father had he died after the commencement of this Act shall be deemed to be the status or description applicable to him at the time of his death.

(4)

For the purposes of this Act, a person shall be deemed to be of full age if he is not a minor and of full capacity if he is not of unsound mind.

Acquisition Of Citizenship

3.

Citizenship by birth.

(1)

Except as provided in sub-section (2), every person born in India

(a)

on or after the 26th day of January, 1950, but before the 1st day of July, 1987;

(b)

on or after the 1st day of July, 1987, but before the commencement of the Citizenship (Amendment) Act, 2003 and either of whose parents is a citizen of India at the time of his birth;

(c)

on or after the commencement of the Citizenship (Amendment) Act, 2003, where

(i)

both of his parents are citizens of India; or

(ii)

one of whose parents is a citizen of India and the other is not an illegal migrant at the time of his birth, shall be a citizen of India by birth.

(2)

a person shall not be a citizen of India by virtue of this section if at the time of his birth

(a)

either his father or mother possesses such immunity from suits and legal process as is accorded to an envoy of a

foreign sovereign power accredited to the President of India and he or she, as the case may be, is not a citizen of India;
or

(b)

his father or mother is an enemy alien and the birth occurs in a place then under occupation by the enemy.

4.

Citizenship by descent.

(1)

A person born outside India shall be a citizen of India by descent,

(a)

on or after the 26th day of January, 1950, but before the 10th day of December, 1992, if his father is a citizen of India at the time of his birth; or

(b)

on or after the 10th day of December, 1992, if either of his parents is a citizen of India at the time of his birth:

Provided that if the father of a person referred to in clause (a) was a citizen of India by descent only, that person shall not be a citizen of India by virtue of this section unless

(a)

his birth is registered at an Indian consulate within one year of its occurrence or the commencement of this Act, whichever is later, or, with the permission of the Central Government, after the expiry of the said period; or

(b)

his father is, at the time of his birth, in service under a Government in India:

Provided further that if either of the parents of a person referred to in clause (b) was a citizen of India by descent only, that person shall not be a citizen of India by virtue of this section, unless

(a)

his birth is registered at an Indian consulate within one year of its occurrence or on or after the 10th day of December, 1992, whichever is later, or, with the permission of the Central Government, after the expiry of the said period; or

(b)

either of his parents is, at the time of his birth, in service under a Government in India:

Provided also that on or after the commencement of the Citizenship (Amendment) Act, 2003, a person shall not be a citizen of India by virtue of this section, unless his birth is registered at an Indian consulate in such form and in such manner, as may be prescribed,

(i)

within one year of its occurrence or the commencement of the Citizenship (Amendment) Act, 2003, whichever is later; or

(ii)

with the permission of the Central Government, after the expiry of the said period:

Provided also that no such birth shall be registered unless the parents of such person declare, in such form and in such manner as may be prescribed, that the minor does not hold the passport of another country.

(1-A) a minor who is a citizen of India by virtue of this section and is also a citizen of any other country shall cease to be a citizen of India if he does not renounce the citizenship or nationality of another country within six months of attaining full age.

(2)

If the Central Government so directs, a birth shall be deemed for the purposes of this section to have been registered with its permission, notwithstanding that its permission was not obtained before the registration.

(3)

For the purposes of the proviso to sub-section (1), [any person]

[Substituted by Act 39 of 1992, Section 2, for " any male person" (w.e.f. 10.12.1992).]

born outside undivided India who was, or was deemed to be, a citizen of India at the commencement of the Constitution shall be deemed to be a citizen of India by descent only.

5.

Citizenship by registration.

(1)

Subject to the provisions of this section and such other conditions and restrictions as may be prescribed, the Central

Government may, on an application made in this behalf, register as a citizen of India any person not being an illegal migrant who is not already such citizen by virtue of the Constitution or of any other provision of this Act if he belongs to any of the following categories, namely:

(a)

a person of Indian origin who is ordinarily resident in India for seven years before making an application for registration;

(b)

a person of Indian origin who is ordinarily resident in any country or place outside undivided India;

(c)

a person who is married to a citizen of India and is ordinarily resident in India for seven years before making an application for registration;

(d)

minor children of persons who are citizens of India;

(e)

a person of full age and capacity whose parents are registered as citizens of India under clause (a) of this sub-section or sub-section (1) of section 6;

(f)

a person of full age and capacity who, or either of his parents, was earlier citizen of independent India, and [is ordinarily resident in India for twelve months]

[Substituted the words 'has been residing in India for one year' by Act No. 1 of 2015.]

immediately before making an application for registration.

(g)

a person of full age and capacity who has been registered as an [Overseas Citizen of India Cardholder]

[Substituted the words 'Overseas Citizen of India' by Act No. 1 of 2015.]

for five years, and who [is ordinarily resident in India for twelve months]

[Substituted the words 'has been residing in India for one year' by Act No. 1 of 2015.]

before making an application for registration.

Explanation. - 1. For the purposes of clauses (a) and (c), an applicant shall be deemed to be ordinarily resident in India if

(i)

he has resided in India throughout the period of twelve months immediately before making an application for registration; and

(ii)

he has resided in India during the eight years immediately preceding the said period of twelve months for a period of not less than six years.

Explanation 2. For the purposes of this sub-section, a person shall be deemed to be of Indian origin if he, or either of his parents, was born in undivided India or in such other territory which became part of India after the 15th day of August, 1947.

(1A)

[The Central Government, if it is satisfied that special circumstances exist, may after recording the circumstances in writing, relax the period of twelve months, specified in clauses (f) and (g) and clause (i) of Explanation 1 of sub-section (1), up to a maximum of thirty days which may be in different breaks.]

[Inserted by Act No. 1 of 2015.]

(2)

No person being of full age shall be registered as a citizen of India under sub-section (1) until he has taken the oath of allegiance in the form specified in the Second Schedule.

(3)

No person who has renounced, or has been deprived of, his Indian citizenship or whose Indian citizenship has terminated, under this Act shall be registered as a citizen of India under sub-section (1) except by order of the Central Government.

(4)

The Central Government may, if satisfied that there are special circumstances justifying such registration, cause any minor to be registered as a citizen of India.

(5)

a person registered under this section shall be a citizen of India by registration as from the date on which he is so registered; and a person registered under the provisions of clause (b)(ii) of article 6 or article 8 of the Constitution shall be deemed to be a citizen of India by registration as from the commencement of the Constitution or the date on which he was so registered, whichever may be later.

(6)

[If the Central Government is satisfied that circumstances exist which render it necessary to grant exemption from the residential requirement under clause (c) of sub-section (1) to any person or a class of persons, it may, for reasons to be recorded in writing, grant such exemption.]

[Inserted by Act 6 of 2004, Section 5 (w.e.f. 3.12.2004).]

6.

Citizenship by naturalisation.

(1)

Where an application is made in the prescribed manner by any person of full age and capacity [not being an illegal migrant]

[Substituted by Act 6 of 2004, Section 6, for " who is not a citizen of a country specified in the First Schedule" (w.e.f. 3.12.2004).]

for the grant of a certificate of naturalisation to him, the Central Government may, if satisfied that the applicant is qualified for naturalisation under the provisions of the Third Schedule, grant to him a certificate of naturalisation:

Provided that, if in the opinion of the Central Government, the applicant is a person who has rendered distinguished service to the cause of science, philosophy, art, literature, world peace or human progress generally, it may waive all or any of the conditions specified in the Third Schedule.

(2)

The person to whom a certificate of naturalisation is granted under sub-section (1)

shall, on taking the oath of allegiance in the form specified in the Second Schedule, be a citizen of India by naturalisation as from the date on which that certificate is granted.

6A.

[Special provisions as to citizenship of persons covered by the Assam Accord.

[Inserted by Act 65 of 1985, Section 2 (w.e.f. 7.12.1985).]

(1)

For the purposes of this section

(a)

Assam means the territories included in the State of Assam immediately before the commencement of the Citizenship (Amendment) Act, 1985;

(b)

detected to be a foreigner means detected to be a foreigner in accordance with the provisions of the Foreigners Act, 1946 (

31 of 1946

), and the Foreigners (Tribunals) Order, 1964

by a Tribunal constituted under the said Order;

(c)

specified territory means the territories included in Bangladesh immediately before the commencement of the Citizenship (Amendment) Act, 1985;

(d)

a person shall be deemed to be of Indian origin, if he, or either of his parents or any of his grandparents was born in undivided India;

(e)

a person shall be deemed to have been detected to be a foreigner on the date on which a Tribunal constituted under the Foreigners (Tribunals) Order, 1964 submits its opinion to the effect that he is a foreigner to the officer or authority concerned.

(2)

Subject to the provisions of sub-sections (6) and (7), all persons of Indian origin who came before the 1st day of January, 1966 to Assam from the specified territory (including such of those whose names were included in the electoral rolls used for the purposes of the General Election to the House of the People held in 1967) and who have been ordinarily resident in Assam since the dates of their entry into Assam shall be deemed to be citizens of India as from the 1st day of January, 1966.

(3)

Subject to the provisions of sub-sections (6) and (7), every person of Indian origin who

(a)

came to Assam on or after the 1st day of January, 1966 but before the 25th day of March, 1971 from the specified territory; and

(b)

has, since the date of his entry into Assam, been ordinarily resident in Assam; and

(c)

has been detected to be a foreigner, shall register himself in accordance with the rules made by the Central Government in this behalf under section 18 with such authority (hereafter in this sub-section referred to as the registering authority) as may be specified in such rules and if his name is included in any electoral roll for any Assembly or Parliamentary constituency in force on the date of such detection, his name shall be deleted therefrom.

Explanation. - In the case of every person seeking registration under this sub-section, the opinion of the Tribunal constituted under the Foreigners (Tribunals) Order, 1964 holding such person to be a foreigner, shall be deemed to be sufficient proof of the requirement under clause (c) of this sub-section and if any question arises as to whether such person complies with any other requirement under this sub-section, the registering authority shall,

(i)

if such opinion contains a finding with respect to such other requirement, decide the question in conformity with such finding;

(ii)

if such opinion does not contain a finding with respect to such other requirement, refer the question to a Tribunal constituted under the said Order having jurisdiction in accordance with such rules as the Central Government may make in this behalf under section 18 and decide the question in conformity with the opinion received on such reference.

(4)

a person registered under sub-section (3) shall have, as from the date on which he has been detected to be a foreigner and till the expiry of a period of ten years from that date, the same rights and obligations as a citizen of India (including the right to obtain a passport under the Passports Act, 1967 (

15 of 1967

) and the obligations connected therewith), but shall not be entitled to have his name included in any electoral roll for any Assembly or Parliamentary constituency at any time before the expiry of the said period of ten years.

(5)

a person registered under sub-section (3) shall be deemed to be a citizen of India for all purposes as from the date of expiry of a period of ten years from the date on which he has been detected to be a foreigner.

(6)

Without prejudice to the provisions of section 8,

(a)

if any person referred to in sub-section (2) submits in the prescribed manner and form and to the prescribed authority within sixty days from the date of commencement of the Citizenship (Amendment) Act, 1985, a declaration that he does not wish to be a citizen of India, such person shall not be deemed to have become a citizen of India under that sub-section;

(b)

if any person referred to in sub-section (3) submits in the prescribed manner and form and to the prescribed authority within sixty days from the date of commencement of the Citizenship (Amendment) Act, 1985, for year or from the date on which he has been detected to be a foreigner, whichever is later, a declaration that he does not wish to be governed by the provisions of that sub-section and sub-sections (4) and (5), it shall not be necessary for such person to register himself under sub-section (3).

Explanation. - Where a person required to file a declaration under this sub-section does not have the capacity to enter into a contract, such declaration may be filed on his behalf by any person competent under the law for the time being in force to act on his behalf.

(7)

Nothing in sub-sections (2) to (6) shall apply in relation to any person

(a)

who, immediately before the commencement of the Citizenship (Amendment) Act, 1985, is a citizen of India;

(b)

who was expelled from India before the commencement of the Citizenship (Amendment) Act, 1985, under the Foreigners Act, 1946 (

31 of 1946

).

(8)

Save as otherwise expressly provided in this section, the provisions of this section shall have effect notwithstanding anything contained in any other law for the time being in force.]

****6B.** [Special provisions as to citizenship of person covered by proviso to clause (b) of sub-section (1) of section 2.

[Inserted by Act

No. 47 of 2019

, dated 12.12.2019.]

(1)

The Central Government or an authority specified by it in this behalf may, subject to such conditions, restrictions and manner as may be prescribed, on an application made in this behalf, grant a certificate of registration or certificate of naturalisation to a person referred to in the proviso to clause (b) of sub-section (1) of section 2.

(2)

Subject to fulfilment of the conditions specified in section 5 or the qualifications for naturalisation under the provisions of the Third Schedule, a person granted the certificate of registration or certificate of naturalisation under sub-section (1) shall be deemed to be a citizen of India from the date of his entry into India.

(3)

On and from the date of commencement of the Citizenship (Amendment) Act, 2019, any proceeding pending against a person under this section in respect of illegal migration or citizenship shall stand abated on conferment of citizenship to him:

Provided that such person shall not be disqualified for making application for citizenship under this section on the ground that the proceeding is pending against him and the Central Government or authority specified by it in this behalf shall not reject his application on that ground if he is otherwise found qualified for grant of citizenship under this section:

Provided further that the person who makes the application for citizenship under this section shall not be deprived of his rights and privileges to which he was entitled on the date of receipt of his application on the ground of making such application.

(4)

Nothing in this section shall apply to tribal area of Assam, Meghalaya, Mizoram or Tripura as included in the Sixth Schedule to the Constitution and the area covered under "The Inner Line" notified under the Bengal Eastern Frontier Regulation, 1873.]**

7.

Citizenship by incorporation of territory.

- If any territory becomes a part of India, the Central Government may, by order notified in the Official Gazette, specify the persons who shall be citizens of India by reason of their connection with that territory; and those persons shall be citizens of India as from the date to be specified in the order.

Overseas Citizenship

7A.

[Registration of Overseas Citizen of India Cardholder.

[Substituted by Act No. 1 of 2015.]

(1)

The Central Government may, subject to such conditions, restrictions and manner as may be prescribed, on an application made in this behalf, register as an Overseas Citizen of India Cardholder-

(a)

any person of full age and capacity,-

(i)

who is a citizen of another country, but was a citizen of India at the time of, or at any time after the commencement of the Constitution; or

(ii)

who is a citizen of another country, but was eligible to become a citizen of India at the time of the commencement of the Constitution; or

(iii)

who is a citizen of another country, but belonged to a territory that became part of India after the 15th day of August, 1947; or

(iv)

who is a child or a grandchild or a great grandchild of such a citizen; or

(b)

a person, who is a minor child of a person mentioned in clause (a); or

(c)

a person, who is a minor child, and whose both parents are citizens of India or one of the parents is a citizen of India; or

(d)

spouse of foreign origin of a citizen of India or spouse of foreign origin of an Overseas Citizen of India Cardholder registered under section 7A and whose marriage has been registered and subsisted for a continuous period of not less than two years immediately preceding the presentation of the application under this section:

Provided that for the eligibility for registration as an Overseas Citizen of India Cardholder, such spouse shall be subjected to prior security clearance by a competent authority in India:

Provided further that no person, who or either of whose parents or grandparents or great grandparents is or had been a citizen of Pakistan, Bangladesh or such other country as the Central Government may, by notification in the Official Gazette, specify, shall be eligible for registration as an Overseas Citizen of India Cardholder under this sub-section.

(2)

The Central Government may, by notification in the Official Gazette, specify the date from which the existing Persons of Indian Origin Cardholders shall be deemed to be Overseas Citizens of India Cardholders.

Explanation.- For the purposes of this sub-section, "Persons of Indian Origin Cardholders" means the persons registered as such under notification number 26011/4/98 F.I., dated the 19th August, 2002, issued by the Central Government in this regard.

(3)

Notwithstanding anything contained in sub-section (1), the Central Government may, if it is satisfied that special circumstances exist, after recording the circumstances in writing, register a person as an Overseas Citizen of India Cardholder.

7B.

Conferment of rights on Overseas Citizen of India Cardholder.

(1)

Notwithstanding anything contained in any other law for the time being in force, an Overseas Citizen of India Cardholder shall be entitled to such rights, other than the rights specified under sub-section (2), as the Central Government may, by notification in the Official Gazette, specify in this behalf.

(2)

An Overseas Citizen of India Cardholder shall not be entitled to the rights conferred on a citizen of India-

(a)

under article 16 of the Constitution with regard to equality of opportunity in matters of public employment;

(b)

under article 58 of the Constitution for election as President;

(c)

under article 66 of the Constitution for election as Vice-President;

(d)

under article 124 of the Constitution for appointment as a Judge of the Supreme Court;

(e)

under article 217 of the Constitution for appointment as a Judge of the High Court;

(f)

under section 16 of the Representation of the People Act, 1950 in regard to registration as a voter;

(g)

under sections 3 and 4 of the Representation of the People Act, 1951 with regard to the eligibility for being a member of the House of the People or of the Council of States, as the case may be;

(h)

under sections 5, 5A and section 6 of the Representation of the People Act, 1951 with regard to the eligibility for being a member of the Legislative Assembly or the Legislative Council, as the case may be, of a State;

(i)

for appointment to public services and posts in connection with affairs of the Union or of any State except for appointment in such services and posts as the Central Government may, by special order in that behalf, specify.

(3)

Every notification issued under sub-section (1) shall be laid before each House of Parliament.

7C.

Renunciation of Overseas Citizen of India Card.

(1)

If any Overseas Citizen of India Cardholder of full age and capacity makes in prescribed manner a declaration renouncing the Card registering him as an Overseas Citizen of India Cardholder, the declaration shall be registered by the Central Government, and upon such registration, that person shall cease to be an Overseas Citizen of India Cardholder.

(2)

Where a person ceases to be an Overseas Citizen of India Cardholder under sub-section (1), the spouse of foreign origin of that person, who has obtained Overseas Citizen of India Card under clause (d) of sub-section (1) of section 7A, and every minor child of that person registered as an Overseas Citizen of India Cardholder shall thereupon cease to be an Overseas Citizen of India Cardholder.

7D.

Cancellation of registration as Overseas Citizen of India Cardholder.

- The Central Government may, by order, cancel the registration granted under sub-section (1) of section 7A, if it is satisfied that-

(a)

the registration as an Overseas Citizen of India Cardholder was obtained by means of fraud, false representation or the concealment of any material fact; or

(b)

the Overseas Citizen of India Cardholder has shown disaffection towards the Constitution, as by law established; or

(c)

the Overseas Citizen of India Cardholder has, during any war in which India may be engaged, unlawfully traded or communicated with an enemy or been engaged in, or associated with, any business or commercial activity that was to his knowledge carried on in such manner as to assist an enemy in that war; or

(d)

the Overseas Citizen of India Cardholder has, within five years after registration under sub-section (1) of section 7A, been sentenced to imprisonment for a term of not less than two years; or

(da) [the Overseas Citizen of India Cardholder has violated any of the provisions of this Act or provisions of any other law for time being in force as may be specified by the Central Government in the notification published in the Official Gazette; or]

[Inserted by Act

No. 47 of 2019

, dated 12.12.2019.]

(e)

it is necessary so to do in the interests of the sovereignty and integrity of India, the security of India, friendly relations of India with any foreign country, or in the interests of the general public; or

(f)

the marriage of an Overseas Citizen of India Cardholder, who has obtained such Card under clause (d) of sub-section (1) of section 7A,-

(i)

has been dissolved by a competent court of law or otherwise; or

(ii)

has not been dissolved but, during the subsistence of such marriage, he has solemnised marriage with any other person.]

[Provided that no order under this section shall be passed unless the Overseas Citizen of India Cardholder has been given a reasonable opportunity of being heard.]

[Inserted by Act

No. 47 of 2019

, dated 12.12.2019.]

Termination of citizenship

8.

Renunciation of citizenship.

(1)

If any citizen of India of full age and capacity, [* * *]

[The words " who is also a citizen or national of another country" omitted by Act 6 of 2004, Section 8 (w.e.f. 3.12.2004).] makes in the prescribed manner a declaration renouncing his Indian citizenship, the declaration shall be registered by the prescribed authority; and, upon such registration, that person shall cease to be a citizen of India:

Provided that if any such declaration is made during any war in which India may be engaged, registration thereof shall be withheld until the Central Government otherwise directs.

(2)

Where [a person]

[Substituted by Act 39 of 1992, Section 3, for " a male person" (w.e.f. 10.12.1987).]

ceases to be a citizen of India under sub-section (1), every minor child of that person shall thereupon cease to be a citizen of India:

Provided that any such child may, within one year after attaining full age, make a declaration [in the prescribed form and manner]

[Inserted by Act 6 of 2004, Section 8 (w.e.f. 3.12.2004).]

that he wishes to resume Indian citizenship and shall thereupon again become a citizen of India.

[* * *]

[Sub-Section (3) omitted by Act 6 of 2004, Section 8 (w.e.f. 3.12.2004).]

Prior to its omission, sub-Section (3) read as under:-

(3) For the purpose of this section, any woman who is, or has been, married shall be deemed to be of full age.

9.

Termination of citizenship.

(1)

Any citizen of India who by naturalisation, registration or otherwise voluntarily acquires, or has at any time between the 26th January, 1950 and the commencement of this Act, voluntarily acquired, the citizenship of another country shall, upon such acquisition or, as the case may be, such commencement, cease to be a citizen of India:

Provided that nothing in this sub-section shall apply to a citizen of India who, during any war in which India may be engaged, voluntarily acquires the citizenship of another country, until the Central Government otherwise directs:

(2)

If any question arises as to whether, when or how any [citizen of India]

[Substituted by Act 6 of 2004, Section 9, for " person" (w.e.f. 3.12.2004).]

has acquired the citizenship of another country, it shall be determined by such authority, in such manner, and having regard to such rules of evidence, as may be prescribed in this behalf.

10.

Deprivation of citizenship.

(1)

A citizen of India who is such by naturalisation or by virtue only of clause (c) of article 5 of the Constitution or by registration otherwise than under clause (b)(ii) of article 6 of the Constitution or clause (a) of sub-section (1) of section 5 of this Act, shall cease to be a citizen of India, if he is deprived of that citizenship by an order of the Central Government under this section.

(2)

Subject to the provisions of this section, the Central Government may, by order, deprive any such citizen of Indian citizenship, if it is satisfied that

(a)

the registration or certificate of naturalisation was obtained by means of fraud, false representation or the concealment of any material fact; or

(b)

that citizen has shown himself by act or speech to be disloyal or disaffected towards the Constitution of India as by law established; or

(c)

that citizen has, during any war in which India may be engaged unlawfully traded or communicated with an enemy or been engaged, in or associated with, any business that was to his knowledge carried on in such manner as to assist an enemy in that war; or

(d)

that citizen has, within five years after registration or naturalisation, been sentenced in any country to imprisonment for a term of not less than two years; or

(e)

that citizen has been ordinarily resident out of India for a continuous period of seven years, and during that period, has neither been at any time a student of any educational institution in a country outside India or in the service of a Government in India or of an international organisation of which India is a member, nor registered annually in the prescribed manner at an Indian consulate his intention to retain his citizenship of India.

(3)

The Central Government shall not deprive a person of citizenship under this section unless it is satisfied that it is not conducive to the public good that that person should continue to be a citizen of India.

(4)

Before making an order under this section, the Central Government shall give the person against whom the order is proposed to be made notice in writing informing him of the ground on which it is proposed to be made and, if the order is proposed to be made on any of the grounds specified in sub-section (2)

other than clause (e) thereof, of his right, upon making application therefor in the prescribed manner, to have his case referred to a committee of inquiry under this section.

(5)

If the order is proposed to be made against a person on any of the grounds specified in sub-section (2) other than clause (e) thereof and that person so applies in the prescribed manner, the Central Government shall, and in any other case it may, refer the case to a Committee of Inquiry consisting of a chairman (being a person who has for at least ten years held a judicial office) and two other members appointed by the Central Government in this behalf.

(6)

The Committee of Inquiry shall, on such reference, hold the inquiry in such manner as may be prescribed and submit its report to the Central Government; and the Central Government shall ordinarily be guided by such report in making an order under this section.

Supplemental

11.

Commonwealth citizenship.

- [Omitted by the Citizenship (Amendment) Act, 2003 (6 of 2004), section 10 (w.e.f. 3-12-2004).]

12.

Power to confer rights of Indian citizen or citizens of certain countries.

- [Omitted by the Citizenship (Amendment) Act, 2003 (6 of 2004), section 10 (w.e.f. 3-12-2004).]

13.

Certificate of citizenship in case of doubt.

- The Central Government may, in such cases as it thinks fit, certify that a person, with respect to whose citizenship of India a doubt exists, is a citizen of India; and a certificate issued under this section shall, unless it is proved that it was obtained by means of fraud, false representation or concealment of any material fact, be conclusive evidence that person was such a citizen on the date thereof, but without prejudice to any evidence that he was such a citizen at an earlier date.

14.

Disposal of application under [sections 5, 6 and 7-A]

[Substituted by Act 6 of 2004, Section 11, for " sections 5 and 6" (w.e.f 3.12.2004).]

.

(1)

The prescribed authority or the Central Government may, in its discretion, grant or refuse an application under [section 5, 6 or section 7-A]

[Substituted by Act 6 of 2004, Section 11, for " sections 5 and 6" (w.e.f 3.12.2004).]

and shall not be required to assign any reasons for such grant or refusal.

(2)

Subject to the provisions of section 15, the decision of the prescribed authority or the Central Government on any such application as aforesaid shall be final and shall not be called in question in any Court.

[14-A. Issue of national identity cards.

[Inserted by Act 6 of 2004, Section 12 (w.e.f. 3.12.2004).]

(1)

The Central Government may compulsorily register every citizen of India and issue national identity card to him.

(2)

The Central Government may maintain a National Register of Indian Citizens and for that purpose establish a National Registration Authority.

(3)

On and from the date of commencement of the Citizenship (Amendment) Act, 2003, the Registrar General, India, appointed under sub-section (1) of section 3 of the Registration of Births and Deaths Act, 1969 (

18 of 1969

) shall act as the National Registration Authority and he shall function as the Registrar General of Citizen Registration.

(4)

The Central Government may appoint such other officers and staff as may be required to assist the Registrar General of Citizen Registration in discharging his functions and responsibilities.

(5)

The procedure to be followed in compulsory registration of the citizens of India shall be such as may be prescribed.]

15.

Revision.

(1)

Any person aggrieved by an order made under this Act by the prescribed authority or any officer or other authority (other than the Central Government) may, within a period of thirty days from the date of the order, make an application to the Central Government for revision of that order:

Provided that the Central Government may entertain the application after the expiry of the said period of thirty days, if it is satisfied that the applicant was prevented by sufficient cause from making the application in time:

Provided further that an application for a review of an order passed in terms of the provisions of section 14-A shall be disposed of in the manner provided for in the procedure as may be laid down under clause (ia) of sub-section (2) of section 18.

(2)

On receipt of any such application under sub-section (1), the Central Government shall, after considering the application of the aggrieved person and any report thereon which the officer or authority making the order may submit, make such order in relation to the application as it deems fit, and the decision of the Central Government shall be final.

[15-A. Review.

[Inserted by Act 6 of 2004, Section 13 (w.e.f. 3.12.2004).]

(1)

Any person aggrieved by an order made by the Central Government, may, within thirty days from the date of such order, make an application for review of such order:

Provided that the Central Government may entertain application after the expiry of the said period of thirty days, if it is satisfied that the applicant was prevented by sufficient cause from making the application in time:

Provided further that an application for a review of an order passed in terms of the provisions of section 14-A shall be disposed of in the manner provided for in the procedure as may be laid down under clause (ia) of sub-section (2) of section 18.

(2)

On receipt of an application under sub-section (1), the Central Government shall make such order as it deems fit, and the decision of the Central Government on such review shall be final.]

16.

Delegation of powers.

- The Central Government may, by order, direct that any power which is conferred on it by any of the provisions of this Act other than those of section 10 and section 18 shall, in such circumstances and under such conditions, if any, as may be specified in the order, be exercisable also by such officer or authority as may be so specified.

17.

Offences.

- Any person who, for the purpose of procuring anything to be done or not to be done under this Act, knowingly makes any representation which is false in a material particular shall be punishable with imprisonment for a term which may extend to [five years]

[Substituted by Act 6 of 2004, Section 14, for " six months" (w.e.f. 3.12.2004).]

, or [with fine which may extend to fifty thousand rupees]

[Substituted by Act 6 of 2004, Section 14,for " with fine" (w.e.f. 3.12.2004).]

, or with both.

18.

Power to make rules.

(1)

The Central Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for

(a)

the registration of anything required or authorised under this Act to be registered, and the conditions and restrictions in regard to such registration;

(aa)

[the form and manner in which a declaration under sub-section (1) of section 4 shall be made;]

[Inserted by Act 6 of 2004, Section 15 (w.e.f. 3.12.2004).]

(b)

the forms to be used and the registers to be maintained under this Act;

(c)

the administration and taking of oaths of allegiance under this Act and the time within which and the manner in which, such oaths shall be taken and recorded;

(d)

the giving of any notice required or authorised to be given by any person under this Act;

(e)

the cancellation of the registration of, and the cancellation and amendment of certificate of naturalisation relating to, persons deprived of citizenship under this Act, and the delivering up of such certificates for those purposes;

(ee)

[the manner and form in which and the authority to whom declarations referred to in clauses (a) and (b) of sub-section (6) of section 6-A shall be submitted and other matters connected with such declarations;]

[Inserted by Act 65 of 1985, Section 3 (w.e.f. 7.12.1985).]

(eei) [the conditions, restrictions and manner for granting certificate of registration or certificate of naturalisation under sub-section (1) of section 6B;]

[Inserted by Act

No. 47 of 2019

, dated 12.12.2019.]

(eea)

[the conditions and the manner subject to which a person may be registered as an Overseas Citizen of India Cardholder under sub-section (1) of section 7A;

[Inserted by Act No. 1 of 2015.]

(eeb)

the manner of making declaration for renunciation of Overseas Citizen of India Card under sub-section (1) of section 7C;]

(f)

the registration at Indian consulates of the births and deaths of persons of any class or description born or dying outside India;

(g)

the levy and collection of fees in respect of applications, registrations, declarations and certificates under this Act, in respect of the taking of an oath of allegiance, and in respect of the supply of certified or other copies of documents;

(h)

the authority to determine the question of acquisition of citizenship of another country, the procedure to be followed by such authority and rules of evidence relating to such cases;

(i)

the procedure to be followed by the committees of inquiry appointed under section 10 and the conferment on such committees of any of the powers, rights and privileges of Civil Courts;

(ia)

[the procedure to be followed in compulsory registration of the citizens of India under sub-section (5) of section 14-A;]

[Inserted by Act 6 of 2004, Section 15 (w.e.f. 3.12.2004).]

(j)

the manner in which applications for revision may be made and the procedure to be followed by the Central Government in dealing with such applications; and

(k)

any other matter which is to be, or may be, prescribed under this Act.

(3)

In making any rule under this section, the Central Government may provide that a breach thereof shall be punishable with fine which may extend to one thousand rupees:

[Provided that any rule made in respect of a matter specified in clause (ia) of sub-section (2) may provide that a breach thereof shall be punishable with imprisonment for a term which may extend to three months, or with fine which may extend to five thousand rupees, or with both.]

[Inserted by Act 6 of 2004, Section 15 (w.e.f. 3.12.2004).]

(4)

[Every rule made under this section shall be laid, as soon as may be after it is made before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so,

however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

[Substituted by Act 4 of 1986, Section 2 and Sch. (w.e.f. 15.5.1986).]

19.

Repeals.

- [Repealed by the Repealing and Amending Act, 1960 (58 of 1960), section 2 and the First Schedule (w.e.f. 26-10-1960).]

THE FIRST SCHEDULE

[Omitted by the Citizenship (Amendment) Act, 2003 (6 of 2004), section 16 (w.e.f. 3-12-2004).]

THE SECOND SCHEDULE

See sections 5(2) and 6(2)]

OATH OF ALLEGIANCE

I, A/B.....do solemnly affirm (or swear) that I will bear true faith and allegiance to the Constitution of India as by law established, and that I will faithfully observe the laws of India and fulfil my duties as a citizen of India.

The Third Schedule

See section 6(1)]

Qualifications For Naturalisation

The qualifications for naturalisation of a person [* * *]

[The words " who is not a citizen of a country specified in the First Schedule" omitted by Act 6 of 2004, Section 18 (w.e.f. 3.12.2004)]

are

(a)

that he is not a subject or citizen of any country where citizens of India are prevented by law or practice of that country from becoming subjects or citizens of that country by naturalisation;

(b)

that, if he is a citizen of any country, [he undertakes to renounce the citizenship of that country in the event of his application for Indian citizenship being accepted]

[Substituted by Act 6 of 2004, Section 18, for " he has renounced the citizenship of that country in accordance with the law therein in force in that behalf and has notified such renunciation to the Central Government" (w.e.f. 3.12.2004).]

;

(c)

that he has either resided in India or been in the service of a Government in India or partly the one and partly the other, throughout the period of twelve months immediately preceding the date of the application;

[Provided that if the Central Government is satisfied that special circumstances exist, it may, after recording the circumstances in writing, relax the period of twelve months up to a maximum of thirty days which may be in different breaks.]

[Inserted by Act No. 1 of 2015.]

(d)

that during the [fourteen years]

[Substituted by Act 6 of 2004, Section 18, for " twelve years" (w.e.f. 3.12.2004).]

immediately preceding the said period of twelve months, he has either resided in India or been in the service of a Government in India, or partly the one and partly the other, for periods amounting in the aggregate to not less than [eleven years]

[Substituted by Act 6 of 2004, Section 18, for " nine years" (w.e.f. 3.12.2004).]

;

[Provided that for the person belonging to Hindu, Sikh, Buddhist, Jain, Parsi or Christian community in Afghanistan, Bangladesh or Pakistan, the aggregate period of residence or service of Government in India as required under this clause shall be read as "not less than five years" in place of "not less than eleven years".]

[Inserted by Act

No. 47 of 2019

, dated 12.12.2019.]

(e)

that he is of good character;

(f)

that he has an adequate knowledge of a language specified in the Eighth Schedule to the Constitution;

and

(g)

that in the event of a certificate of naturalisation being granted to him, he intends to reside in India, or to enter into or continue in, service under a Government in India or under an international organisation of which India is a member or under a society, company or body of persons established in India:

Provided that the Central Government may, if in the special circumstances of any particular case it thinks fit,

(i)

allow a continuous period of twelve months ending not more than six months before the date of the application to be reckoned, for the purposes of clause (c) above, as if it had immediately preceded that date;

(ii)

allow periods of residence or service earlier than [fifteen years]

[Substituted by Act 6 of 2004, Section 18, for "thirteen years" (w.e.f. 3.12.2004).]

before the date of the application to be reckoned in computing the aggregate mentioned in clause (d) above.

The Fourth Schedule

[Omitted by the Citizenship (Amendment) Act, 2005 (32

of 2005), section 5 (w.r.e.f. 28-6-2005).]

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